

Judgment Sheet
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT

Crl. Appeal No.507-J of 2025

(Abdul Rehman alias Babi **versus** The State)

Crl. Appeal No.508-J of 2025

(Muhammad Ismail **versus** The State)

Crl. Appeal No.509-J of 2025

(Allah Wadhaya **versus** The State)

Crl. Appeal No.510-J of 2025

(Allah Wasaya alias Waseem **versus** The State)

Crl. Appeal No.511-J of 2025

(Ali Zubair **versus** The State)

Crl. Appeal No.512-J of 2025

(Muhammad Niaz **versus** The State)

Crl. Revision No.199 of 2025

(Haji Allah Ditta **versus** The State, etc)

JUDGMENT

Date of hearing	03.06.2026
Appellants by:	M/s Hafiz Shahid Nadeem Kahloon, Pir Imran Akram Bodla, Sardar Abdul Basit Khan, Khalid Umar Chaudhary and Ms. Shamsa Kanwal Advocates along with Muhammad Niaz, appellant in person.
State by:	Mr. Zafar Iqbal Soomro, DDPP.
Complainant by:	M/s Mirza Muhammad Azam, Muhammad Afzal Dharala, Mian Muhammad Salman Idrees, Mian Muhammad Junaid Akhtar and Waseem Ishaq Manik, Advocates.

Sardar Akbar Ali. J:- Abdul Rehman *alias* Babi, Muhammad Ismail, Allah Wadhaya, Allah Wasaya *alias* Waseem, Ali Zubair and Muhammad Niaz (appellants) along with co-accused Muhammad Altaf, Riaz and Ali Sher were tried by the learned Additional Sessions Judge/ Model Criminal Trial Court, Bahawalnagar, in private complaint titled “Haji Allah Ditta vs. Abdul Rehman alias Babi and others” filed by Haji Allah Ditta complainant under sections 302/ 324/ 336/ 337-A(i)(ii)/ 337-F(i)(iii)/ 337-L(ii)/ 109/ 148/ 149 PPC emanated from case F.I.R. No.660/ 2024 dated 09.09.2024 registered under sections 302/ 324/ 148/ 149/ 109 PPC registered at Police Station Saddar Bahawalnagar, and on conclusion of trial *vide* judgment dated 29.10.2025, co-accused namely Muhammad Altaf, Riaz and Ali Sher

were acquitted of the charges whereas the appellants were convicted and sentenced as under:

Abdul Rehman alias Babi

1. **U/S 302(b) PPC**, Life Imprisonment as Tazir for causing Qatl-e-Amad of Saif-ul-Malook (deceased). Convict is also directed to pay compensation of Rs. 10,00,000/- (One Million) U/S 544-A of Cr.P.C. which shall be distributed among legal heirs of Saif-ul-Malook (deceased) according to their legal shares. The compensation will be recoverable as arrears of land revenue from the convict, in case of default in payment of compensation amount in terms of Sec.544-A Cr.P.C, convict would, further, undergo six months S.I.
2. **U/S. 324/148/149 PPC**, 10-years R.I and fine of Rs.25,000/-, in case of default in payment of fine, convict would, further, undergo six months S.I.

Muhammad Ismail, Appellant

1. **U/S. 324/148/149 PPC**, 10-years R.I and fine of Rs.25,000/-, in case of default in payment of fine, convict would, further, undergo six months S.I.
2. **U/S. 337-A(i) PPC**, 02-years R.I and Daman in sum of Rs.25,000/- payable to Maqbool Bibi, injured for injury No.1 & 02-years R.I and Daman in sum of Rs.25,000/-payable to Maqbool Bibi, injured for injury No.2.
3. **U/S. 337-F(ii) PPC**, 03-years R.I and Daman in sum of Rs.25,000/- payable to Maqbool Bibi, injured for injury No.4 & 03 years R.I and Daman in sum of Rs.25,000/-payable to Maqbool Bibi, injured for injury No.6.
4. Convict will remain in jail till the payment of Daman amounts.

Allah Wadhaya, Appellant

1. **U/S. 336 PPC**, 10-years R.I and Arsh (1/2 of Diyat) in sum of Rs.49,14,335/- payable to Allah Rakha, injured for injury No.2.
2. **U/S. 324/148/149 PPC**, 10-years R.I and fine of Rs.25,000/-, in case of default in payment of fine, convict would, further, undergo six months S.I.
3. **U/S. 337-A(i) PPC**, 02-years R.I and Daman in sum of Rs.25,000/- payable to Allah Rakha, injured for injury No.1 and 02-years R.I and Daman in sum of Rs.25,000/- payable to Allah Rakha, injured for injury No.3.
4. **U/S. 337-F(iii) PPC**, 03-years R.I and Daman in sum of Rs.25,000/- payable to Allah Rakha, injured for injury No.4 and 03-years R.I and Daman in sum of Rs.25,000/- payable to Allah Rakha, injured for injury No.5.
5. **U/S. 337-F(i) PPC**, 01-year R.I and Daman in sum of Rs.25,000/- payable to Allah Rakha, injured for injury No.6 and 01-year R.I and Daman in sum of Rs.25,000/- payable to Allah Rakha, injured for injury No.7.

Convict will remain in jail till the payment of Arsh and Daman amounts.

Ali Zubair, Appellant

1. **U/S. 324/148/149 PPC**, 10-years R.I and fine of Rs.25,000/-, in case of default in payment of fine, convict would, further, undergo six months S.I.

2. **U/S. 337-F(iii) PPC**, 03-years R.I and Daman in sum of Rs.25,000/- payable to Mohsin, injured. Convict will remain in jail till the payment of Daman amount.

Allah Wasaya alias Waseem, Appellant

1. **U/S. 324/148/149 PPC**, 10-years R.I and fine of Rs.25,000/-, in case of default in payment of fine, convict would, further, undergo six months S.I.
2. **U/S 337-F(i) PPC**, 01-year R.I and Daman in sum of Rs.25,000/- payable to Bilal, injured for injury No.2, 01-year R.1 and Daman in sum of Rs.25,000/- payable to Bilal, injured for injury No.3 & 01-year R.1 and Daman in sum of Rs.25,000/-payable to Bilal, injured for injury No.4.
3. **U/S. 337-F(iii) PPC**, 03 years R.I and Daman in sum of Rs.25,000/- payable to Bilal, injured for injury No.5 & 03 years RI and Daman in sum of Rs.25,000/-payable to Bilal, injured for injury No.6.
4. Convict will remain in jail till the payment of Daman amounts.

Muhammad Niaz, Appellant

1. **U/S. 324/148/149 PPC**, to 10-years RI and fine of Rs.25,000/-, in case of default in payment of fine, convict would, further, undergo six months S.I.
2. **U/S. 337-F(i) PPC**, 01-year R.I and Daman in sum of Rs.25,000/-payable to Abdul Shakoor, injured.
3. Convict will remain in jail till the payment of Daman amount.

All the sentences of the appellants were ordered to run concurrently while extending them benefits of section 382-B Cr.P.C.

2. Aggrieved by their convictions and sentences, Abdul Rehman *alias* Babi, Muhammad Ismail, Allah Wadhaya, Allah Wasaya *alias* Waseem, Ali Zubair and Muhammad Niaz (appellants) have filed the aforementioned appeals whereas Haji Allah Ditta filed **Crl. Revision No.199 of 2025** for enhancement of sentences of the appellants. However, the complainant filed PSLA No.48 of 2025 against the acquittal of co-accused namely Muhammad Altaf, Riaz and Ali Sher which was dismissed due to non-prosecution vide order dated 18.05.2026.

3. Since all these matters have arisen out of the same judgment, therefore, the same are being decided together through this single judgment.

4. The facts of the case, as enumerated in paragraph No.01 of the impugned judgment of the learned trial Court, are that:

“Complainant's version as recorded in complaint (Exh.PB) is that on 09.09.2024 at about 04:00PM, he alongwith his family members, was present in his home. In the meanwhile, Abdul Rehman *alias* Babi, accused, armed with 12-bore gun, Allah Wadhaya, accused, armed with 12-bore gun, Altaf, accused, armed with 12-bore gun, Allah Wasaya *alias* Waseem, accused, armed with repeater, Muhammad Ismail, accused, armed with 12-bore gun, Ali Zubair, accused, armed with 12-bore gun and Muhammad Niaz, accused, armed with 12-bore gun came there. Abdul Rehman *alias* Babi, accused and Ismail, accused, raised lalkara to teach them a lesson for previous night motorcycle collusion. Abdul Rehman *alias* Babi, accused made straight fire with 12-bore gun which landed at

the left shoulder of complainant's son Saif-ul-Malook. Abdul Rehman alias Babi, accused made second fire which hit at chest and belly of Saif-ul-Malook. Abdul Rehman alias Babi, accused made third fire which landed at the right side of back of Saif-ul-Malook. Allah Wadhaya, accused made fire with 12-bore gun which hit Allah Rakha, PW at his head and forehead. Allah Wadhaya, accused made second fire which hit at left arm and chest of Allah Rakha. Allah Wadhaya, accused made third fire which landed at back of Allah Rakha. Allah Wasaya alias Waseem, accused made fire with his repeater gun which landed at the left eye, right shoulder, left elbow, wrist, chest and belly of Muhammad Bilal. Ali Zubair, accused made fire which hit Muhammad Mohsin at his left buttock. Muhammad Ismail, accused made fire shot with his 12-bore gun which landed at right cheek and head of Mst. Maqbool Bibi. Muhammad Ismail, accused also gave butt blow to Mst. Maqbool Bibi and injured her. Muhammad Altaf, accused made fire with 12-bore gun which hit at back side of left hand of Shahwan Bibi.

He also gave her butt blow. Niaz Ahmad, accused made fire shot with 12-bore gun which hit at left shin of Abdul Shakoor. On hearing hue and cry, Ghulam Rasool S/O Ghulam Fareed and Alam Ali S/O Naik Muhammad, PWs were attracted to the spot. Many other persons of locality were also attracted. At the sight of people and PWs, accused while hoisting their weapons decamped from the spot. Occurrence was committed on the abetment of Muhammad Riaz S/O Rafique and Ali Sher S/O Ashraf. Complainant in presence of witnesses attended his son Saif-ul-Malook who succumbed to injuries at the spot.

3. Motive of the occurrence is that on the preceding night, motorcycle of complainant's son Allah Rakha and Mohsin had collided with the motorcycle of Abdul Rehman and Ismail accused and an altercation and also occurred. The accused nursed grudge of the same and they in connivance with each other committed murder of complainant's son Saif-ul-Malook and injured other persons."

5. After recording cursory evidence, the appellants were summoned to face trial in the private complaint case. When charge sheeted, the accused/appellants pleaded not guilty and claimed to be tried, whereupon, the prosecution examined 07 prosecution witnesses and 12 court witnesses. On closure of prosecution case, the accused/ appellants were examined under section 342 Cr.P.C. who refuted the prosecution evidence. However, they neither opted to appear as their own witness as required by section 340(2) Cr.P.C. nor to adduce evidence in their defence except Ali Zubair, appellant who produced evidence in his defence and the trial ended in the terms as detailed in opening paragraph of this judgment.

6. Heard. Record perused.

7. This unfortunate incident wherein Saif-ul-Malook (deceased) lost his life whereas Muhammad Bilal, injured (PW-02), Muhammad Mohsin, injured (PW-03), Maqbool Bibi, injured (PW-04), Abdul Shakoor, injured (PW-05), Allah Rakha, injured (PW-06) and Mst. Shahwan Bibi, injured (since given up PW) sustained injuries, as per prosecution, took place on 09.09.2024 at 04:00 p.m. in the area of Mauza Fatwera Hithar within the territorial limits of Police Station Saddar, Bahawalnagar and the matter was reported to the police on the same day at 11:00 p.m. with the delay of 07

hours despite the fact that the police station was 11 kilometers from the place of the occurrence. Nowhere in the entire evidence, the prosecution has explained the reason for such delay in reporting the matter to the police. The delayed FIR shows dishonesty on the part of the complainant and that it was lodged with deliberation and consultation. Therefore, I hold that this inordinate delay in setting the machinery of law in motion speaks volumes against the veracity of prosecution version. In the case of “*Mehmood Ahmed & others vs. The State & another*” (1995 SCMR 127), it was observed by the Hon’ble Supreme Court of Pakistan that:

“Delay of two hours in lodging the FIR in the particular circumstances of the case had assumed great significance as the same could be attributed to consultation, taking instructions and calculatedly preparing the report keeping the names of the accused open for roping in such persons whom ultimately the prosecution might wish to implicate.”

Reliance is also placed upon the case reported as “*Muhammad Siddique and another vs. The State and others*” (2026 SCMR 783).

8. Dr. Atiq-ur-Rehman while appearing before the learned trial Court as (CW-02) stated that he conducted autopsy on the dead body of Saif-ul-Malook (deceased) on 09.09.2024 at 11:00 p.m. He opined that probable time that elapsed between injuries and death was less than 10 minutes and between death and postmortem was less than 10 hours, thus, there is a delay of about 07 hours in conducting autopsy on the dead body of the deceased. At the same time, it has been noticed that the occurrence had taken place on 09.09.2024 at 04:00 p.m. and the F.I.R was registered at 11:00 p.m. whereas the police papers were received by the doctor at 10:55 p.m. and the postmortem was also conducted at 11:00 p.m. then how it could be possible for the Investigating Officer to prepare the police papers before lodging the F.I.R. and how the autopsy on the dead body of the deceased was conducted and the F.I.R was lodged at the same time at 11:00 p.m. There is no explanation at all available on record for such delay. No doubt, the noticeable delay in post mortem examination of the dead body is generally suggestive of a real possibility that time had been consumed by the police in procuring and planting eye-witnesses before preparing police papers necessary for the same. Furthermore, this fact suggests that nobody was present at the spot due to which the dead-body remained lying unattended at the spot for a long time. This fact also creates dent about the veracity of

prosecution story. I may refer here the case of “Irshad Ahmed v. The State” (2011 SCMR 1190), wherein the Hon’ble Supreme Court of Pakistan has observed as under:-

“We have further observed that the post-mortem examination of the deadbody of Shehzad Ahmed deceased had been conducted with a noticeable delay and such delay is generally suggestive of a real possibility that time had been consumed by the police in procuring and planting eye-witnesses and in cooking up a story for the prosecution before preparing police papers necessary for getting a post-mortem examination of the dead body conducted.”

Reliance is also placed upon the case reported as “Mushtaq Ahmad vs. The State” (2026 SCMR 60).

9. The ocular account has been furnished by Haji Allah Ditta, complainant (PW-01), Muhammad Bilal, injured (PW-02), Muhammad Mohsin, injured (PW-03), Mst. Maqbool Bibi, injured (PW-04), Abdul Shakoor, injured (PW-05), Allah Rakha, injured (PW-06) and Ghulam Rasool (PW-07) whose testimonies are fraught with major contradictions, material improvements, and inherent improbabilities which in the absence of independent corroboration, are inherently suspect and must be scrutinized with extreme caution.

10. I have carefully examined the statements of these PWs in order to reach a just decision in the case. It has been noted with great importance that while appearing in the dock all the eyewitnesses contradicted each other on material aspects of the case as well as made dishonest improvements and omissions as well. It was the case of the prosecution as narrated by Haji Allah Ditta, complainant (PW-01) in written complaint (Exh.PA) and in Private Complaint (Exh.PB) as well as in their statements got recorded under section 161 Cr.P.C. by Muhammad Bilal, injured (PW-02), Muhammad Mohsin, injured (PW-03), Mst. Maqbool Bibi, injured (PW-04), Allah Rakha, injured (PW-06) that Allah Wasaya *alias* Waseem (appellant) made a fire shot with his repeater 12 bore which hit Muhammad Bilal, injured (PW-02) on his left eye, right shoulder, left elbow, wrist, chest and belly but while appearing before the learned trial Court, all the aforesaid injured eyewitnesses in their examination-in-chief improved their statements by changing the role ascribed to Allah Wasaya *alias* Waseem (appellant) and stated that he made first fire shot with his repeater gun which landed at the left eye, right shoulder and left elbow of Muhammad Bilal, injured (PW-02) and his left eye was spoiled whereas the

second fire shot made by him hit Muhammad Bilal, injured (PW-02) at his wrist, belly (umbilicus) and chest. I have further noticed that Haji Allah Ditta, complainant (PW-01) in written complaint (Exh.PA) and in Private Complaint (Exh.PB) as well as in the statements recorded under section 161 Cr.P.C. Muhammad Bilal, injured (PW-02), Muhammad Mohsin, injured (PW-03), Mst. Maqbool Bibi, injured (PW-04), Allah Rakha, injured (PW-06) stated that Muhammad Ismail (appellant) made a fire shot with his .12 bore gun which hit Maqbool Bibi, injured (PW-04) on her left cheek and head but while appearing before the learned trial Court, they all in their examination-in-chief improved their statements by changing the role ascribed to Muhammad Ismail by stating that the fire shot made by Muhammad Ismail (appellant) hit Maqbool Bibi, injured (PW-04) at her right cheek and head. Muhammad Ismail, SI/I.O. (CW-11) admitted before the learned trial Court that *“Maqbool Bibi was not injured during this occurrence rather prior to occurrence, she was injured by Abdul Rehman, Ismail accused when she was cutting fodder with her son Mohsin who had made fire shot at the accused.”*

11. It has also been noticed with grave concern that Taj Shaheen, SI (CW-08) recorded police proceedings at the bottom of Complaint (Exh.PA) that he along with police contingent on receiving the information reached at the place of murder of Saif-ul-Malook (deceased) where Haji Allah Ditta, complainant (PW-01) presented Complaint (Exh.PA) before him but Muhammad Bilal, injured (PW-02) in his cross-examination stated that his father moved written application before the Investigating Officer at the hospital. He further stated that he informed the PFSA Team about the occurrence and at that time all the injured persons were also present at the place of occurrence and after making their injury statements, they all were shifted to the hospital through official vehicle of Rescue-1122. The alleged occurrence had taken place on 09.09.2024 at 04:00 p.m. and it was reported to the police on the same day at 11:00 p.m. Injury statement (Exh.CW-01/E) of Mst. Maqbool Bibi was prepared by Taj Shaheen, SI (CW-08) on 09.09.2024 at 06:50 p.m. whereas Nida Akbar, WMO (CW-01) medically examined her on 10.09.2024 at 12:30 AM; prepared Injury statement (Exh.CW-02/D) of Muhammad Bilal, injured (PW-02) on 09.09.2024 at 06:50 p.m. whereas Dr. Atteq-ur-Rehman (CW-02) medically examined him at 06:50 p.m.; prepared Injury statement (Exh.CW-02/F) of Muhammad Mohsin, injured (PW-03) on 09.09.2024 at 06:50 p.m.

whereas Dr. Atteq-ur-Rehman (CW-02) medically examined him at 06:50 p.m. and prepared injury statement (Exh..CW-2/J) of Allah Rakha, injured (PW-06) on 09.09.2024 at 06.50 p.m. whereas Dr.Atteq-ur-Rehman (CW-02) medically examined him at 06:50 p.m. Here it would be relevant to reproduce the relevant portion of statement of Muhammad Bilal, injured (PW-02) which he admitted during cross-examination that “*My father moved written application at hospital.*” It is very strange that the time of preparing injury statements of the aforesaid injured PWs and their medical examination except Mst. Maqbool Bibi, injured (PW-04) by the doctor is the same which fact strongly led this Court to believe that the statements of the injured PWs were recorded at the hospital and more so, the crucial as well as noticeable fact of the case is that F.I.R (Exh.PA) was lodged at 11:00 p.m. after medical examination of the injured PWs, therefore, the element of consultation and deliberation in planting the eyewitnesses as well as photogenic description of injuries sustained by the injured PWs as well as the deceased cannot be ruled out.

Sadia Manzoor, 1962/LC (CW-04) in her examination-in-chief stated that on 09.09.2024, she associated Taj Shaheen, SI (CW-08) and after having information about the occurrence, they reached at the place of occurrence, where Taj Shaheen, SI (CW-08) handed over to her police papers of Mst. Maqbool Bibi, injured (PW-04) and Mst. Shahwan Bibi (since given up PW) for their medical examination and she escorted them to DHQ Hospital, Bahawalnagar and produced them before Dr. Nida Akbar, WMO (CW-01). She in her cross-examination further admitted that they got information of the occurrence at about 04:00 / 05:00 p.m. and at about 05:00 p.m. they reached at the spot and after 30 minutes she escorted the injured persons to hospital but in the police proceeding recorded by Taj Shaheen, SI (CW-08) at the bottom of complaint(Exh.PA), he narrated that he shifted all the injured persons to hospital through ambulance of Rescue-1122. At the same time, Sadia Manzoor, 1962/LC (CW-04) also admitted that she along with Investigating Officer reached at the spot at 10:00 p.m.

Binyamin, 906-C (CW-05) in his examination-in-chief stated that on 09.09.2024 after having information, he reached at the place of occurrence along with Taj Shaheen, SI (CW-08) who handed over to him police papers and dead body of Saif-ul-Malook (deceased) and injured persons to DHQ Hospital, Bahawalnagar and he produced the dead body of deceased and injured persons before Dr. Attiq-ur-Rehman, MO. Whereas Taj Shaheen,

SI/ I.O. (CW-08) in his cross-examination that Binyamin, 906-C carried injured and dead body separately. Binyamin, 906-C (CW-05) in his cross-examination admitted that he did not remember the exact time when he produced the injured persons before the medical officer.

Adeel-ur-Rehman, 1524-C (CW-06) in his examination-in-chief stated that on 09.09.2024 he visited the place of occurrence along with Taj Shaheen, SI/ IO (CW-08) who handed over to him complaint (Exh.PA) for its transmission to the police station which he handed over to Muhammad Murtaza, ASI and thereafter he returned to the place of occurrence with police file. During cross-examination, he admitted that he received complaint (Exh.PA) from Taj Shaheen, SI/ I.O. (CW-08) at about 10:00 p.m. and at that time dead body of the deceased as well as the injured persons were present at the spot. He further admitted that he reached at the place of occurrence at 04:00/ 04:30 p.m.

Taj Shaheen, SI/ I.O. (CW-08) in his examination-in-chief stated that on 09.09.2024, on receiving information of the occurrence, he reached at the place of occurrence where dead body of Saif-ul-Malook (deceased) was present and he prepared his injury statement and inquest report and also prepared injury statements of the injured PWs. He in his cross-examination admitted that he reached at the spot at about 05:00/ 05:15 p.m. whereas the officials of Crime Scene Unit visited the place of occurrence at about 10:00 p.m. He further admitted that before arrival of Crime Scene Unit, injured persons had already left for hospital whereas dead body was sent to DHQ Hospital upon its examination by the Crime Scene Unit. He further admitted that he sent complaint (Exh.PA) to the police station after 10:00 p.m. It was also admitted by him that in the police proceedings date was referred but time was omitted. The most important portion of his admission in his cross-examination was that **“Till medico legal examination of injured persons, F.I.R was not recorded. Injured persons were medically examined at 06:50 p.m. F.I.R was recorded at 11:00 p.m.”**

12. After going through the statements of the aforementioned prosecution witnesses, I have come to the conclusion that the F.I.R was registered after medical examination of the injured PWs as well as the time of registration of the F.I.R (Exh.PA) as well as the time of postmortem examination on the dead body of Saif-ul-Malook (deceased) is the same i.e. 11:00 p.m. Whether it was possible for the Investigating Officer that at the same time of registration of F.I.R, within a moment the police papers were

prepared and even immediately thereafter were presented before the doctor, therefore, I am of the view that the factum of deliberation and consultation on the part of the complainant cannot be ruled out.

13. The aforesaid flaws, contradictions and improvements in the statements of aforesaid PWs create serious doubts in the prosecution story. It is settled by now that dishonest improvements made by a witness in his statement to strengthen the prosecution case casts serious doubt about veracity of his statement and makes the same untrustworthy and unreliable. Reliance in this regard is placed upon the cases reported as “Azhar Iqbal and 3 others vs The State through P.G. Punjab, Lahore and others” (2026 SCMR 182) and “Amjad Ali vs. The State” (2026 SCMR 729).

14. It is also evident from the above discussion even mindful of the fact that injured prosecution witnesses had allegedly sustained fire arm injuries on their persons but it is not necessary that the injured witnesses had spoken the whole truth and it cannot be relied upon unless corroborated, which is lacking in the instant case. It is by now well settled that mere injuries on the person of the injured PW do not mean that he was stating the whole truth and his evidence is to be relied upon or discarded while keeping in view the other facts and circumstances of particular case. Moreover, injuries do not inherently grant access to the truth and therefore a narrative must resonate with authenticity to warrant trust. Reliance can be made in the case of “Nasir Ahmad vs. Muhammad Iqbal” (2011 SCMR 527), which is presented as follows:

“It is settled law that injuries of P.W. are only indication of his presence at the spot but are not affirmative of his credibility and truth.”

As all the injured PWs have changed the roles of Allah Wasaya *alias* Wasseem and Muhammad Ismail (appellants) for causing injuries to Muhammad Bilal, injured (PW-02) and Muhammad Mohsin, injured (PW-03), thus, their evidence is not trustworthy and confidence inspiring. Reliance in this regard is placed upon the cases reported as “Said Ahmad vs. Zammured Hussain and 4 others” (1981 SCMR 795) and “Muhammad Idrees vs. The State” (2025 SCMR 1145).

15. I have minutely perused the evidence of the PWs and have no hesitation to observe that Allah Wasaya *alias* Waseem (appellant) who was ascribed the role of causing fire arm injury on the person of Muhammad Bilal, injured (PW-02) during the occurrence had also sustained fire arm injury on his shin and Taj Shaheen, SI/ I.O. (CW-08) prepared his Injury

Statement (Exh.CW.2/N) on 09.09.2024 at 07:20 p.m. vide MLC No.1213 and he was also medically examined by Dr. Ateeq-ur-Rehman (CW-02) on 09.09.2024 at about 07:20 p.m. who observed two firearm injuries out of which one on medical aspect of his left leg and the other on lateral aspect of his left leg but Haji Allah Ditta, complainant (PW-01) in written complaint (Exh.PA), in Private Complaint (Exh.PB) as well as all the injured PWs in their examination-in-chief did not state about the injuries sustained by Allah Wasaya *alias* Waseem (appellant) rather suppressed the same, therefore, I am of the view that suppression of injuries sustained by Allah Wasaya *alias* Waseem (appellant) or failure to explain said injuries by the complainant party in a murder case (*Qatl-i-Amd*) is viewed as a serious flaw, often rendering the prosecution case doubtful and causing eye-witness testimony to be viewed with suspicion. It has been held by the superior courts that when the prosecution fails to explain injuries on the accused, it indicates a suppression of the true facts. Reliance is placed upon the case reported as “Amjad and another vs. The State and another” (2020 SCMR 2084).

16. I have also noticed that in written complaint (Exh.PA) as well as in Private Complaint (Exh.PB), the complainant stated that the fire shot made by Niaz Ahmad (appellant) hit Abdul Shakoor, injured (PW-05) on his left shin but Dr. Atteq-ur-Rehman (CW-02) while appearing before the learned trial Court while examining Abdul Shakoor, injured (PW-05) observed an abrasion 02cm x 01cm an antero-medical aspect of his left leg below knee with oozing blood, was caused by blunt weapon. It has further been observed that Dr. Atteq-ur-Rehman (CW-02) while conducting autopsy on the dead body of Saif-ul-Malook (deceased) observed blackening and burning on his injuries whereas he also observed blackening and burning on the injuries sustained by Muhammad Bilal, injured (PW-02), Muhammad Mohsin, injured (PW-03) as well as Allah Rakha, injured (PW-06) but when the statement of the doctor is seen in juxtaposition with the statement of Muhammad Din, Draftsman (CW-03) and Scaled Site Plan (Exh.CW-3/A) prepared by him wherein he mentioned that at Point No.1 Saif-ul-Malook (deceased) was sitting on a cot whereas from Point No.2 Abdul Rehman *alias* Babi (appellant) made fire shot at Saif-ul-Malook (deceased) and the distance between Points No.1 & 2 was 25'-0" (feet) and at Point No.3 Allah Rakha, injured (PW-06) received fire arm injury at the hands of Allah Wadhaya (appellant) whereas Allah Wadhaya, appellant was shown

to be present at Point No.4 and the intervening distance of Points No.3 & 4 was shown to be 44' (feet). He further explained that at Point No.5, Muhammad Bilal, injured (PW-02) was standing whereas at Point No.6, Allah Wasaya *alias* Waseem (appellant) made a fire shot at him with his repeater 12 bore and the distance between Points No.5 & 6 was 80' (feet) whereas at Point No.7, Muhammad Mohsin, injured (PW-03) was standing whereas from Point No.08 Ali Zubair (appellant) made fire shot at him and the intervening distance of Points No.07 & 08 was 96' (feet) which fact clearly negates/ contradicts the statements of the eyewitnesses and also goes to the very root of the prosecution case that how the blackening and burning could be occurred from such long distances on the persons of the deceased as well as all the deceased persons.

17. According to the Modi's Book of Medical Jurisprudence and Toxicology 27th Edition, in case of pistol fire shot burning can occur if the fire shot is made from a distance of within 02 feet. Relevant extract from the Book of Modi's Medical Jurisprudence and Toxicology 27th Edition reproduced as under:-

“...25.7.1.1 Distance of the Firearm If a firearm is discharged very close to the body or in actual contact, subcutaneous tissues over an area of two or three inches around the wound of entrance are lacerated and the surrounding skin is usually scorched and blackened by smoke and tattooed with unburnt/partially burnt grains of gunpowder or smokeless propellant powder. The adjacent hairs are singed, and the clothes covering the part are burnt by the flame. If the powder is smokeless, there may be a greyish or white around the wound. If the area is photographed by infrared light, a smoke halo round the wound may be clearly noticed. **Blackening is found, if a firearm like a shotgun is discharged from a distance of not more than three feet** and a revolver or pistol discharged within about two feet.”

Reliance is also placed upon the case law titled as “Riasat Ali and another vs. The State and another” (2024 SCMR 1224), wherein it has been held as under:-

“14. The postmortem report of deceased Asadullah Khan mentions about blackened and burnt area of his entrance wound near lower end of his scapula. The distance from which the deceased Asadullah Khan was fired upon was 5.5 feet. According to Modi's Medical Jurisprudence and Toxicology blackening is found, if a firearm like shotgun is discharged from a distance of not more than three feet and a revolver or pistol is discharged within about two feet.”

18. In view of the above, I am of the view that there is visible major conflict in between the ocular account and the medical evidence. Such contradiction also leads this Court to draw an inference that as a matter of fact the prosecution witnesses were not truthful in their stance, were not present at the place of occurrence at the relevant time and had not witnessed the occurrence. Guidance is sought from “Imtiaz Hussain Shah alias Tajjay

Shah and another vs. The State and others” (2025 SCMR 1110), “Chetan vs. The State” (2025 SCMR 944), “Muhammad Abras vs. State” [PLJ 2026 (Cr.C.) 136], “Iftikhar Ahmad alias Meena vs. The State” (2026 SCMR 674) and (2026 SCMR 729).

19. The F.I.R in this case was lodged on 09.09.2024 and the private complaint was filed by Haji Allah Ditta (PW-01) on 24.03.2025 with the delay of about six months and fifteen days. Late filing of a private complaint in a murder case does not inherently invalidate the case but creates a presumption of doubt, as longer delays reduce the believability of testimony, particularly when based solely on oral evidence. Furthermore, when a private complaint is filed after a long delay, it often results in the prosecution's story being deemed "unbelievable" and creates serious doubts about the culpability of the accused, sometimes leading to acquittal. The delay in filing private complaint runs counter to the stance of prosecution as taken in the F.I.R, which amounts to concoction and fabrication.

20. Another intriguing aspect of the case is that the most natural witness of the occurrence was Mst. Shahwan Bibi who sustained injury on back side of her left hand inflicted by Muhammad Altaf (co-accused since acquitted) but she was not produced as a witness during the trial, therefore, the prosecution has also withheld the best piece of evidence in the shape of statement of Mst. Shahwan Bibi, hence an adverse inference within the meaning of Article 129(g) of Qanun-e-Shahadat Order, 1984 can also validly be drawn against the prosecution that had the abovementioned witness been produced in the witness box then his evidence would have been unfavourable to the prosecution. Reliance in this respect may be placed on the case reported as “Imtiaz Hussain Shah alias Tajjay Shah and another vs. State & others” (2025 SCMR 1110) and “Amjad Ali vs. The State” (2026 SCMR 729).

21. Although a site plan in a murder case is not substantive evidence but serves as a crucial illustrative document to explain, corroborate, or contradict ocular testimony. It is prepared based on the pointing out (pointation) of witnesses and the Investigating Officer's (I.O.) observation, holding high evidentiary value only if properly proved and based on firsthand witness information. As per prosecution’s own case, as narrated by complainant in written complaint (Exh.PA) and in Private Complaint (Exh.PB), the complainant along with his family members was present in his house where the appellants had emerged there and committed the

occurrence but from the perusal of Scaled Site Plan (Exh.CW-3/A) prepared by Muhammad Din, Draftsman (CW-03), it shows that the locations of Muhammad Altaf (co-accused since acquitted) (at Point No.12) and appellants, Allah Wadhaya (at Point No.4), Muhammad Ismail (at Point No.10), Allah Wasaya (at Point No.6), Ali Zubair (at Point No.08) and Niaz Ahmad (at Point No.14) have been shown across the watercourse on the northern side of the house, the alleged place of occurrence whereas the presence of appellant Abdul Rehman *alias* Babi has been shown across the watercourse between the southern side of the water channel and the house of the occurrence. The dead body of Saif-ul-Malook deceased was shown lying on a cot in the mid of the courtyard of the house at Point No.1 whereas Maqbool Bibi (at Point No.9), Allah Rakha (at Point No.3) and Muhammad Bilal, injured (PW-02) (at Point No.5) have been shown to be present inside the courtyard/ premises of the house and Muhammad Mohsin, injured (PW-03) and Shahwan Bibi (since given up PW) were shown to be present outside the premises/ courtyard of the house at Points No.7 & 11. I have further noticed that Abdul Shakoor, injured (PW-05) was shown to be present at Point No.13 which was across the watercourse on the western side of the house of occurrence. It was also alleged by the complainant that at Point No.9, the place which was inside the house, Muhammad Ismail (appellant) inflicted butt blows to Maqbool Bibi, injured (PW-04) but Muhammad Ismail (appellant) has been shown at Point No.10 across the watercourse and the intervening distance between Points No.9 & 10 was 40'-0" (feet), then how he inflicted butt blows to Maqbool Bibi, injured (PW-04). Likewise Shahwan Bibi, injured (since given up PW) sustained firearm injury as well as butt blows at the hands of Muhammad Altaf (co-accused since acquitted) at an open place on the southern side away to the house of occurrence but Muhammad Altaf (co-accused since acquitted) has been shown on the northern side across the watercourse and the intervening distance between Points No.9 & 10 has been shown as 100'-0" (feet) then how Muhammad Altaf (co-accused since acquitted) inflicted butt blows of his gun to Shahwan Bibi, injured (since given up PW) from a distance of 100'-0". Haji Allah Ditta, complainant (PW-01) in his cross-examination admitted that there was a water channel and pond in the northern side of his house and his house was facing east and one room was opening towards southern side. He further admitted that Abdul Rehman had come across water channel where Saif-ul-Malook (deceased)

was lying on a cot at a distance of 20-feet from water channel. All the injured PWs had admitted before the learned trial Court that Saif-ul-Malook was sick during the days of occurrence and he had no animosity or ill will with any one but he was made target by taking away his life. In the scaled site plan, his dead body has been shown lying on a cot but neither in the complaint nor in the private complaint and even before the learned trial court none of eyewitnesses stated that Saif-ul-Malook (deceased) while sitting on a cot sustained injuries and the Investigating Officer has also not taken into possession any cot from the place of occurrence. Even the doctor during autopsy observed injuries on the back as well as on the front side of body of Saif-ul-Malook (deceased), then how it could be possible that the deceased received injuries at the hands of Abdul Rehman *alias* Babi (appellant) from a distance of 25' (feet) on the front as well as back side of his body. Haji Allah Ditta, complainant (PW-01) in his cross-examination admitted that the Investigating Officer and Draftsman prepared site plans on their pointation and that there was a water channel and pond in the Northern side of his house and that his house was facing east and some rooms were facing south. He also admitted that there was a boundary wall in Eastern and Southern sides of the house and if boundary wall is believed as such, then Muhammad Mohsin, injured (PW-03) who was present on the opposite side/ Southern side of wall of the house whereas Ali Zubair (appellant) was present on Northern side across the water channel at a distance of 96-feet and between them there was boundary wall, then how he sustained fire arm injury at the hands of Ali Zubair (appellant). It has also been also noticed that except Abdul Rehman *alias* Babi (appellant) all the other accused were standing in the vertical position and they all made fire shots with 12-bore guns then from the distances as discussed above, how it could be determined that out of which fire shots, the pellets hit the deceased and the injured PWs individually. Thus, I am of the view that Scaled Site Plan (Exh.CW-3/A) is not supporting the prosecution story which fact makes the prosecution case highly doubtful.

22. Another important fact of the case is that Allah Wasaya *alias* Waseem, Muhammad Niaz, Muhammad Altaf, Ali Riaz and Zubair (appellants) were declared innocent during the investigation and even no crime weapon was recovered from their possession and this fact has been admitted by Muhammad Bilal, injured (PW-02), Muhammad Mohsin, injured (PW-03), Maqbool Bibi (PW-04) and Allah Rakha, injured (PW-

06) in their cross-examination. Muhammad Ismail, SI/ I.O. (CW-11) in his cross-examination admitted that *“I conducted investigation only to the extent of Abdul Rehman, Allah Wadhaya and Muhammad Ismail, accused. Rest of accused had been declared innocent in earlier investigations.”* He further admitted that:

“In my investigation, it was found that one or one and half hour prior to this occurrence, Allah Wasaya was injured by the firing of Mohsin and Allah Rakha, PWs while he was cutting fodder and Altaf and Niaz Ahmad concealed themselves in nearby crops. In my investigation, it was found that as Allah Wasaya received the fire arm injury, due to this reason, he did not go to the place of occurrence at the time of occurrence. It was found in my investigation that Altaf and Niaz Ahmad, accused were looking after their brother Allah Wasaya, hence, they did not go to the place of occurrence. Distance between the place of occurrence and field whereof Allah Wasaya received fire arm injury is about 1 ½ kilometer. Due to this reason, I found Allah Wasaya, Altaf and Niaz Ahmad, not involved in the occurrence. It was found in my investigation that occurrence started after firing of Mohsin, PW at Abdul Rehman and Muhammad Ismail, accused when they were crossing the place where Maqbool Bibi and Mohsin were busy in cutting fodder. It was found in my investigation that retaliation Abdul Rehman and Ismail, accused made fire shots and to rescue Mohsin, some pellets hit Maqbool Bibi. It was found in my investigation that Maqbool Bibi did not receive injury at the place whereof Saif ul Malook (deceased) was murdered i.e. her house. It was found in my investigation that both Abdul Rehman and Ismail, accused made firing but I could not exactly conclude that fire of which accused hit Maqbool Bibi. It was found in my investigation that upon receiving fire shot by Maqbool Bibi, Mohsin PW made telephonic call to Allah Rakh, his brother, that our mother had received fire arm injury, upon which Allah Rakha and their brother-in-law Ghulam Rasool () armed with weapon went to the field and made firing at the person of Allah Wasaya. It was found in my investigation that cross-firing was also made by complainant party at the time of occurrence of murder of Saif-ul-Malook (deceased). It was also found in my investigation that Ismail, accused was not armed with gun 12-bore rather he was armed with pistol 30 bore.....During my investigation, I could not determine that whose fire hit to whom.”

I have also noticed that the complainant did not bother to challenge the investigations before any higher forums and straightaway filed the Private Complaint (Exh.PB). This admission from the investigator himself that he found no credible evidence against five of the accused demolishes the prosecution's claim of their involvement and, by extension, casts a shadow on the entire case. Reliance in this regard is placed upon the case reported as *“Aziz Ullah vs. The State” (2008 SCMR 922)*.

23. So far as the recovery is concern, nothing incriminating was recovered from the possession of appellants Allah Wasaya *alias* Waseem, Muhammad Niaz, Muhammad Altaf, Ali Riaz and Zubair, so the recovery in this case to their extent is inconsequential.

24. As regards the recovery of crime weapons from appellants Muhammad Ismail, Abdul Rehman and Allah Wadhaya is concerned, they were arrested on 19.11.2025 and on 01.12.2024, they got recovered 12-bore double barrel guns from their houses. The matching report of PFSA

(Exh.PL) regarding the recovery of 12-G shotgun at the instance of Muhammad Ismail (appellant) is in the negative, thus, the recovery to his extent is also inconsequential.

25. Although the PFSA report (Ex.PL) to the extent of appellants Abdul Rehman alias Babi and Allah Wadhaya has been received in the positive but the fact remains that when I have already disbelieved the ocular account, such recovery would not be sufficient for recording conviction of an accused on capital charge, because this type of corroborative evidence is always taken into consideration along with direct evidence. In case titled “Noor Muhammad Versus The State” (2010 SCMR 97) it has been held by the Supreme Court of Pakistan that recovery of crime weapon even with matching report of PFSA is only corroborative piece of evidence, which by itself is not sufficient to record conviction. Reliance in this regard is placed upon the case reported as “Muhammad Siddique and another vs. The State and others (2026 SCMR 783).

26. Taj Shaheen, SI/ I.O. (PW-08) while appearing before the learned trial Court in his examination-in-chief stated that: “*During inspection I secured 10-empties P-3/1-10 of cartridges of 12-bore gun from the place where Saif-ul-Malook was murdered*” but the report of PFSA (Exh.PL) shows that on 24.09.2024 Taj Shaheen, SI (CW-08) submitted one 12G shotshell case (Item SS1) but while appearing before the learned trial Court in his examination-in-chief stated that “*On 24.09.2024, I received sample parcel said to contain blood stained soil, one exhibit sheet and sealed parcels received from Crime Scene Unit, PFS from Imran Hafeez, 970/ HC/ Moharrar vide road certificate No.1194 and 1195 and on the same day deposited in Punjab Forensic Science Agency, Lahore intact*” and there was no mentioning of any crime empty in any sealed parcel. The report further shows that on 13.11.2024, Khalid Aslam, SI (CW-09) deposited Ten 12G shotshell cases (Items SS2 to SS11) in the Office of PFSA.

27. Firstly, it has been noticed with grave concern that as per statement of Taj Shaheen, SI (CW-08), he collected 10-empties P-3/1-10 of cartridges of 12-bore gun from the place where Saif-ul-Malook was murdered but PFSA Report (Exh.PL) shows that on 24.09.2024, Taj Shaheen, SI (CW-08) deposited one 12G Shot shell case (Item S.S.1) and on 13.11.2024 Khalid Aslam, SI (CW-09) deposited 10 12G shotshell cases (Items SS2 to SS11) in the office of PFSA, which shows that total 11-empties of cartridges of 12-bore gun were deposited in the office of PFSA with one

extra empty of cartridge of 12-bore gun for which the prosecution has no answer and this fact makes the case of the prosecution story doubtful.

Secondly there is delay in sending the crime empties and other articles for forensic analyzes has lost evidentiary value and hit under the doctrine of improvement, therefore, forensic report of PFSA (Exh.PL) cannot be taken into consideration. Khalid Aslam, SI (PW-09) in his examination-in-chief stated that on 13.11.2024, he received one sealed parcel said to contain empties of cartridges form Imran Hafeez, 970/HC/Moharrar and on the same day he deposited the same in the office of PFSA whereas the occurrence had occurred on 09.09.2024. The dispatchment of crime empties after a two-months' & four-days' delay raises serious concerns of manipulation or planting, gravely compromising its authenticity and evidentiary value. Jurisprudence consistently holds that unexplained delays in recovering or dispatching crime empties render such evidence suspect.

28. The trial Court erred in treating these crime empties cartridges as corroborative of the ocular account. In the case reported as "Daniel Boyd v. The State" (1992 SCMR 196), the Hon'ble Supreme Court observed that ballistic reports lose probative force when empties and weapons remain in custody for months before forensic analysis. This fundamental failure to establish a direct forensic link between the weapon and the victim renders the recovery evidence unreliable and insufficient for corroboration. It has been held in the cases "Ali Sher v. The State" (2008 SCMR 707) and "Khuda-A-Dad v. The State" (2017 SCMR 701), such delays in sending crime weapons and empties to the FSL can destroy their evidentiary value. These fundamental lapses create serious doubt, and no conviction can safely be based on such compromised material. Reliance is also placed upon the case reported as "Ibrar vs. The State" (2026 SCMR 476).

29. So far as the motive part of the prosecution case is concerned, it has been alleged by the complainant in written Complaint as well as in Private Complaint that during the night the motorcycle of his sons Allah Rakha and Mohsin collided with Abdul Rehman and Ismail and due to that grudge, they along with their co-accused had committed the occurrence but in their examination-in-chief the PWs stated that the motorcycle of Allah Rakha and Mohsin had collided with the motorcycle of Abdul Rehman and Ismail but when Muhammad Mohsin, injured (PW-03) and Allah Rakha, injured (PW-06) were confronted with their previous statements recorded under

section 161 Cr.P.C. wherein it was not so recorded. It has also been noticed that the motive was attributed to Muhammad Mohsin, injured (PW-03) and Allah Rakha, injured (PW-06) but an innocent person Saif-ul-Malook (deceased) who had no grudge as well as ill will or enmity with anyone was done to death, therefore, I am of the view that the prosecution has failed to prove the motive part of the occurrence. Reliance is placed upon the cases reported as “Muhammad Riaz and others vs. The State and others” (2024 SCMR 1839) and “Manzoor Ahmed vs. The State” (2026 SCMR 621).

30. As far as the defence plea taken by the appellants in their statements under Section 342, Code of Criminal Procedure is concerned, since the prosecution evidence is doubtful in nature, therefore, there is no need to discuss the same which is exculpatory in nature.

31. For what has been discussed above, I have no doubt to hold that here in this case the prosecution has miserably failed to establish the charge against the accused/appellants beyond any shadow of doubt. In the cases of “Muhammad Riaz vs. Khurram Shehzad and another” (2024 SCMR 51) & “Muhammad Nawaz and another vs. The State and others” (2024 SCMR 1731), the Supreme Court of Pakistan has held that for giving benefit of doubt to an accused a single circumstance creating reasonable doubt in a prudent mind about guilt of accused is sufficient to make him entitled to such benefit, whereas, in present case numerous doubts have crept into the evidence making whole edifice of prosecution unreliable. Reliance is also placed upon the cases reported as “Muhammad Aslam vs. The State” (2025 SCMR 1240) and “Imran vs. Versus The State” (2026 SCMR 47). Thus, the prosecution has squarely failed to bring home the guilt against the accused/appellant.

32. For the foregoing reasons, all the Criminal Appeal No.507-J of 2025, Criminal Appeal No.508-J of 2025, Criminal Appeal No.509-J of 2025, Criminal Appeal No.510-J of 2025, Criminal Appeal No.511-J of 2025 and Criminal Appeal No.512-J of 2025 filed by Abdul Rehman *alias* Babi, Muhammad Ismail, Allah Wadhaya, Allah Wasaya *alias* Waseem, Ali Zubair and Muhammad Niaz (appellants) are **allowed**, convictions and sentences awarded to the appellants *vide* judgment dated 29.10.2025 passed by the learned trial court are set aside and they are **acquitted** of the charges levelled against them while extending them benefit of doubt. Muhammad Niaz (appellant) is on bail. His surety is discharged from the liability owed

by him whereas remaining appellants Abdul Rehman *alias* Babi, Muhammad Ismail, Allah Wadhaya, Allah Wasaya *alias* Waseem, and Ali Zubair (appellants) are in jail. They are ordered to be released forthwith, if not required in any other criminal case.

(SARDAR AKBAR ALI)
JUDGE

Approved for Reporting.

JUDGE

M. Arshad `